

24STCV23670 24STCV23670

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV23670

MAYA

KOGAN BY AND THROUGH HER SUCCESSOR-IN-INTEREST, SAMAIL KOGAN, et al. vs

GRANADA HILLS CONVALESCENT HOSPITAL, INC.

July

16, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF
ISSUES BY DEFENDANT GRANADA HILLS CONVALESCENT HOSPITAL, INC. dba GRANADA HILLS
CARE CENTER.

RULING:

The Court denies the Motion
for Summary Judgment and Alternative Motion for Summary Adjudication of Issues.

The Court overrules
Defendant's Evidentiary Objections filed July 2, 2026.

Plaintiff to give notice.

I.

BACKGROUND

On September 13, 2024, MAYA
KOGAN, SAMAIL KOGAN, IRINA BRANDALIS, and MARINA KOGAN AKOPNIK, (Plaintiffs) filed
a Complaint against GRANADA HILLS CONVALESCENT HOSPITAL, INC. (Defendant),
listing Causes of Action for:

1.

ELDER ABUSE/NEGLECT (Pursuant to Welfare and Institutions Code
§§15657 & 15610.57);

2.

NEGLIGENCE;

3.

VIOLATION OF RESIDENT'S RIGHTS (Pursuant
to Health and Safety Code § 1430); and

4.

WRONGFUL DEATH.

Plaintiffs allege that MAYA
KOGAN (Deceased) was a dependent elder who suffered preventable
injuries, including pulmonary embolism, cerebral edema, anoxic brain
encephalopathy, multiple infections and death, and who Defendant convalescent
hospital had neglected and denied.

On April 23, 2026, Defendant

filed the Motion for Summary Judgment or Summary Adjudication as to each Cause of Action, along with a uniquely heavy emphasis upon evidentiary objections to medical expert testimony.

Plaintiffs oppose, based upon arguments such as that experts Dr. Rearick and Nurse Elbe support triable issues of material fact about Defendant's staff failing to recognize and respond to the decedent's markedly reduced mobility after orthopedic surgery and polytrauma, which contributed to her fatal thromboembolic event.

II.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) "[T]he role of the court in summary judgment proceedings is not to weigh the evidence, but to determine whether there exists a triable issue of material fact." (*Habitat Trust for Wildlife, Inc. v. City of Rancho Cucamonga* (2009) 175 Cal.App.4th 1306, 1342.)

"A trial court enjoys broad discretion in ruling on foundational matters on which expert testimony is to be based." (*Maatuk v. Guttman* (2009) 173 Cal.App.4th 1191, 1197.) "The court must not weigh an opinion's probative value or substitute its own opinion for the expert's opinion. Rather, the court must simply determine whether the matter relied on can provide a reasonable basis for the opinion or whether that opinion is based on a leap of logic or conjecture." (*Sargon Ent., Inc. v. Univ. of So. Cal.* (2012) 55 Cal.4th 747, 772.) " 'The goal of trial court gatekeeping is simply to exclude "clearly invalid and unreliable" expert opinion.' " (*Cooper v. Takeda Pharms. Am., Inc.* (2015) 239 Cal.App.4th 555, 592 ["methodologies were explored in detail through cross-examination and with the defense expert witnesses, and constituted evidence that went to the weight and not the admissibility...."].) There is a "fundamental distinction between the admissibility of evidence and its weight." (*Union Pac. R.R. Co. v. Santa Fe Pac. Pipelines, Inc.* (2014) 231 Cal.App.4th 134, 187.) "[I]ssues about clarity and certitude go to credibility and weight, not admissibility." (*Collins v. Navistar, Inc.* (2013) 214 Cal.App.4th 1486, 1514.) "It is for the trial

court to determine, in the exercise of a sound discretion, the competency and qualification of an expert witness to give his opinion in evidence [citation], and its ruling will not be disturbed on appeal unless a manifest abuse of that discretion is shown.” (Osborn v. Irwin Memorial Blood Bank (1992) 5 Cal.App.4th 234, 274.) “ ‘[Q]uestions regarding the degree of an expert’s knowledge go more to the weight of the evidence presented than to its admissibility.’ ” (Richard v. Union Pac. R.R. Co. (2024) 105 Cal.App.5th 1263, 1277.)

Regarding the Elder Abuse

Act, if a health care facility knows it must provide a certain type of care on a daily basis but provides it sporadically, or is supposed to provide multiple types of care but only provides some, then the withholding of care may constitute more than negligence, and reckless conduct, in support of heightened remedies, where a trier of fact finds a significant pattern of withholding medical care. (Sababin v. Superior Court (2006) 144 Cal.App.4th 81, 90. See also Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 163-165 [Elder Abuse Act applies to defendants having had a caretaking or custodial relationship with an elder or dependent adult, including health care providers, administrators or employees of health facilities, persons providing care or services, members of support and maintenance staff, nursing homes, and clinics]; Stewart v. Superior Court (2017) 16 Cal.App.5th 87, 108 [triable issues regarding whether medical entity’s decision-making structure, and doctor’s decision about treatment, were beyond professional negligence and instead reckless]; Intrieri v. Superior Court (2004) 117 Cal.App.4th 72, 85 [determining triable issue existed regarding reckless neglect in not providing medical care]; Benun v. Superior Court (2004) 123 Cal.App.4th 113, 126 [“the intent of the Elder Abuse Act is to subject health care providers to its ‘heightened remedies’ when their acts or omissions are reckless or willful and, thus, more culpable than professional negligence.”]; Worsham v. O’Connor Hospital (2014) 226 Cal.App.4th 331, 338 [alleged failures to provide a doctor-recommended sitter to prevent fall, understaffing and undertraining, amounted to professional negligence lacking in specific facts indicating any recklessness, defined as a conscious choice of action done with knowledge of serious danger to others involved]; Nevarrez v. San Marino Skilled Nursing and Wellness Centre (2013) 221 Cal.App.4th 102, 128 [“To recover enhanced remedies under the act, ‘a plaintiff must prove more than simple or even gross negligence in the provider’s care or custody of the elder.’”].)

The

elements of a Cause of Action for Medical Negligence are these:

1.

Duty of the professional to use skill,
prudence, and diligence as other members of the profession possess and exercise
commonly;

2.

breach of that duty;

3.

proximate cause; and

4.

actual loss or damage.

(Avivi v. Centro Medico Urgente Medical Center (2008) 159

Cal.App.4th 463, 468, fn.2; Hanson v.

Grode (1999) 76 Cal.App.4th 601, 606.)

California Health &

Safety Code "section 1430(b) provides that a current or former patient of a

skilled nursing facility 'may bring a civil action against the licensee of a

facility who violates any rights of the resident or patient as set forth in the

Patients Bill of Rights in Section 72527 of Title 22 of the California Code of

Regulations, or any other right provided for by federal or state law or

regulation. ... The licensee shall be liable for up to five hundred dollars

(\$500), and for costs and attorney fees, and may be enjoined from

permitting the violation to continue" (Jarman v. HCR ManorCare, Inc (2020) 10 Cal.5th 375, 381. Accord Nevarrez v. San
Marino Skilled Nursing & Wellness Ctr., LLC

(2013) 221 Cal.App.4th 102, 123.)

And the elements of cause

of action for wrongful death are a tort, resulting death, and damages of the

heirs. (Quiroz v. Seventh Ave. Center

(2006) 140 Cal.App.4th 1256, 1263.)

III.

ANALYSIS

Defendant contends that Plaintiff's expert declarations incompetently lack certain details, including any overlooked symptoms, possibility of deep vein thrombosis (DVT) and pulmonary embolism even without negligence, and any treatable or earlier intervention that would have improved the outcome. Defendant contrasts that with defense expert William Klein, M.D. who reportedly explained that Defendant's staff performed appropriately and while the decedent's vital signs were normal.

Plaintiffs counterargue that Defendant's staff violated regulatory rules, knowingly withheld care, failed to assess DVT after polytrauma and recent surgery, and failed to implement a DVT prophylaxis like sequential compression devices. As evidence, the Opposition contains references to Plaintiffs' declarations (Exhibit E) about staff lack of care provided to their mother, and two expert declarations contradicting Defendant's expert.

"When the moving party produces a competent expert declaration showing there is no triable issue of fact on an essential element of the opposing party's claims, the opposing party's burden is to produce a competent expert declaration to the contrary." (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761-762.) Summary judgment must be denied if an opposing expert declaration raises a triable issue as to whether a physician deviated from the standard of care, thereby causing an injury and actual loss or damage. (Tortorella v. Castro (2006) 140 Cal.App.4th 1, 12-13.)

Here, in response to Defendant's expert declarations, Plaintiff filed declarations of a doctor and registered nurse, providing reasonable bases for their opinions about Defendant's neglect, withheld care, and causation, all based upon well explained medical records. And Defendants detailed arguments about asserted insufficiencies of the expert declarations go to their weight and not their admissibility.

IV.

CONCLUSION

Therefore, Court denies the Motion, entirely.